

These exhibits, coupled with the declaration of Mr. Cervantes, establish a prima facia showing for Breach of Contract, and that the balance owed to the Plaintiff is \$13,845.68. The burden would normally shift to the Defendant at this point, but the Motion is unopposed. In addition, defendant's answer, filed May 22, 2025, does not deny the allegations of the complaint, nor does it assert any affirmative defenses.

Disposition

The Court finds and orders as follows:

1. The MSJ is GRANTED.

Plaintiff to prepare the order after hearing.

5. 9:00 AM CASE NUMBER: L25-05676
CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER
***HEARING ON MOTION IN RE: FOR LEAVE TO ADD EXHIBIT "N" TO THE 3RD AMENDED COMPLAINT**
FILED BY: SCHINDLER, JULIE A M
TENTATIVE RULING:

Plaintiff moves for leave to add a new Exhibit, designated as Exhibit N, to the Third Amended Complaint. Defendants argue that the motion is unnecessary, on the ground that the information contained in the proposed Exhibit (a medical record) is already alleged in the Third Amended Complaint. Nonetheless, however, they do not oppose the motion as long as it is not deemed to constitute a Fourth Amended Complaint. The underlying concern appears to be that defendants have demurred more than once, only to have plaintiff amend the complaint again.

Amendments of pleadings are liberally granted, particularly where there is no prejudice to the opposing party.

The motion to amend the Third Amended Complaint by adding Exhibit N is granted with the proviso that the addition of Exhibit N shall not constitute the filing of a Fourth Amended Complaint, including for purposes of any pending or future demurrer or motion to strike. No other changes to the Third Amended Complaint are authorized by this order.

6. 9:00 AM CASE NUMBER: L25-08444
CASE NAME: CAPITAL ONE N.A. VS. YEVGENIYA KOSHTA
***HEARING ON MOTION IN RE: MOTION UNDER CCP 454 TO PRECLUDE PLN ACCT EVIDENCE OR ALT COMPEL FURTHER ACCT FILED BY DEF ON 4/3/26**
FILED BY:
TENTATIVE RULING: